

MASTER SERVICES AGREEMENT

This Master Services Agreement ('Agreement') is entered into as of October 1, 2026, by and between Apex Global Solutions Inc. ('Customer') and Lumina Tech Services LLC ('Vendor').

1. SCOPE OF SERVICES

Vendor shall perform cloud infrastructure management, custom software architecture, and artificial intelligence integration services as outlined in individual Statements of Work executed under this Agreement.

2. PAYMENT AND FEES

Customer shall remit payment within thirty (30) days of receipt of a valid, undisputed invoice. Any late payments shall accrue interest at a rate of one percent (1.0%) per month or the highest legal permissible limit, whichever is lower.

3. CONFIDENTIALITY & PROPRIETARY INFORMATION

Each party agrees to maintain in strict confidence all proprietary data, financial projections, source code, and trade secrets disclosed by the other party. Neither party shall disclose Confidential Information to third parties without prior written consent, surviving five (5) years following contract termination.

4. INTELLECTUAL PROPERTY RIGHTS

All deliverables, documentation, custom scripts, and code developed exclusively for Customer pursuant to this Agreement shall constitute 'works made for hire' and become the sole and exclusive property of Customer upon full satisfaction of fees.

5. INDEMNIFICATION

Vendor agrees to defend, indemnify, and hold harmless Customer, its officers, affiliates, and employees from and against any third-party claims, liabilities, damages, and expenses arising out of any infringement of intellectual property rights, gross negligence, or willful misconduct by Vendor.

6. LIMITATION OF LIABILITY

Except for liabilities arising under Section 3 (Confidentiality) or Section 5 (Indemnification), neither party's aggregate monetary liability under this Agreement shall exceed the total amount actually paid by Customer to Vendor in the twelve (12) months preceding the event giving rise to liability.

7. TERM AND TERMINATION

Either party may terminate this Agreement without cause upon giving sixty (60) calendar days prior written notice to the other party. Either party may terminate immediately if the other party breaches any material term and fails to cure within thirty (30) days of written notice.

8. GOVERNING LAW & JURISDICTION

This Agreement shall be construed, interpreted, and governed in accordance with the substantive laws of the State of Delaware, without giving effect to conflicts of law principles. Any dispute arising hereunder shall be subject to the exclusive jurisdiction of the state and federal courts located in New Castle County, Delaware.

9. NON-SOLICITATION

During the term of this Agreement and for twelve (12) months thereafter, neither party shall knowingly solicit or employ any personnel or contractor of the other party without express written permission.